

19SMCV01008 19SMCV01008

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This is an ex parte application to set a contempt hearing for defendant's failure to execute an assignment as it had promised to do. We were here a few months ago on a similar issue, and the court thought it had worked things out. But apparently not. By way of thumbnail background, this arises from the settlement of a civil suit brought by plaintiff against defendant claiming that defendant was using his image and licensing it without his permission. The matter went to the jury and it is fair to say that defendant did not do well. Before the punitive damages phase could begin, the parties settled the matter.

The settlement was agreed upon in open court. The agreement was based on an exchange of emails and was to be replaced by a "long form" agreement. However, the parties intended that until and unless the long form was signed, the exchange of emails would be binding. One of the terms of the settlement was that defendant would assign its copyright interest in the images of Jaeschke to Jaeschke. However, defendant was concerned that Jaeschke would sue those who were using the image, and those entities would turn around and sue defendant.

As part of the settlement, the parties agreed to establish protocols to protect defendant from such an action.

As the court understands it, the general nature would be that Jaeschke would agree not to sue any third party for the prior use of the image but would only sue the third party if the image was not taken down after Jaeschke (or perhaps defendant) told the entity to do so.

That agreement, though, was not a reduction in Jaeschke's rights under the assignment; rather it was an agreement separate from (although related to) the assignment agreement but one that would bind Jaeschke nonetheless. After the last hearing, where the court expressed its view that the settlement essentially meant what the court just said, the court granted the motion to enforce.

The court did not craft the language to be used, however. Plaintiff claims that the court's order

granting the motion to enforce the settlement (which was essentially a motion to compel defendant to assign the copyright) is the one being breached. Plaintiff contends that it cleaned up the proposed assignment to be consistent with the court's order and sent it to the defense. The defense seems to have ignored the communication. Plaintiff says it followed up but was again met with silence. Plaintiff now seeks contempt. In opposition, defendants state a concern about images that include not only plaintiff, but others. They are worried that assigning the entire copyright to plaintiff could lead to suits by those others, or something like that. The solution they propose is that as to images that include others as well as plaintiff, they assign 90% of the copyright to plaintiff and retain 10% so that they have some control. They claim that this is the way to achieve the protocol and protection for which they bargained in the email exchange such that they would not be sued unless a party refused to take down plaintiff's image.

The court is inclined to DENY the request. Procedurally, this ought to be as a technical matter a request that the court issue an OSC re: Contempt. Plaintiff has provided no such document, and there are specific forms for this. An OSC re: Contempt is a charging document, like an indictment. It has to set forth the counts of contempt and other matters just like an indictment or information would. Plaintiff did not do that. For that reason alone, the request is denied. But the court also thinks plaintiff does not really want to march down this path, although plaintiff thinks he does. This seems to be a one-count OSC. That means that if plaintiff prevails, defendant will pay a relatively small fine or do a bit of community service. (There is the theoretical possibility of jail time, but it is unlikely here, and even were the court to order it, there is real doubt as to whether the Sheriff would actually lock someone up over this given overcrowding.) That's it. In the meantime, this would be viewed as a criminal matter. Defendant would have the right to counsel and all of the rights that a criminal defendant would have. Because it is one count, there would be no jury, but otherwise, that is where we are. In the meantime, everything freezes because the defendant has the right against self-incrimination. This is a ham-fisted way to get compliance.

What the court thinks plaintiff is really after is an order that defendant sign a particular assignment document with particular language and, if defendant does not sign, then a signature by the clerk that actually assigns the rights (assuming that the court can issue such an order—that has

not been briefed). In the meantime, the court needs to hear from the defense why it seems to continue to ignore prior rulings and agreements. Defendants avoided what could have been significant punitive damages by virtue of this settlement. The jury's verdict was very much in plaintiff's favor and the jury had found punitive damages were appropriate. Defendants got the benefit of the bargain. The trial ended, the jury went home, and no judgment was entered against it. But defendants must honor their end as well.

At the last hearing, the court said "all means all." In their opposition, defendants agree on the one hand—they say so—but then they argue that all means 90%. The problem is that they agreed to something that they now regret. They were under the gun, to be sure. But they agreed nonetheless. All means all. It does not mean 90%. If defendants are worried that plaintiff will wrongfully exploit the pictures of third parties, then they can build a protection against that into the protocol. If they are concerned that someone will refuse to take down a picture of plaintiff because there is a third party in it and then they will be sued for it, then they either need to accept that risk or build a safety into the protocols. But what they cannot do is keep part of the copyright they agreed to assign.

For now, the application for an OSC re: Contempt is DENIED. But the court expects it will soon see a more particular request for a specific order concerning the assignment. Better for all would be for the parties to reach an accord.